

Strategic Governance and Legal Analysis: Drafting an Ultimatum Regarding the Refusal of a 'Fit & Proper Person' Assessment

1. Executive Strategic Review and Case Orientation

1.1 The Crux of the Administrative Impasse

The scenario presented involves a complex intersection of administrative law, academic governance, and disability rights within the jurisdiction of the Republic of Ireland. The subject, Mr. Cian Lyons, a graduate of the University of Galway (formerly NUI Galway) with a Bachelor of Arts in Mathematics and Education (2021) and a Higher Diploma in Applied Science (2023), faces a critical barrier to professional entry. Specifically, the refusal of a specific academic staff member, Professor Anthony Hall, to provide a "Fit and Proper Person" character reference required by the Teaching Council of Ireland threatens to nullify the professional utility of the applicant's primary degree.

This report posits that the refusal is not merely an exercise of academic discretion but potentially constitutes a breach of statutory duty under the *Equal Status Acts 2000–2018* and the *Disability Act 2005*, given the applicant's documented medical history of Post-Traumatic Stress Disorder (PTSD) and Anxiety Disorder.¹ Furthermore, the refusal contradicts the University's own certification of the applicant's competence through the conferral of a First Class Honours degree.¹

The urgency of this matter is dictated by the Teaching Council's regulatory framework, specifically the "Five-Year Rule" regarding referee eligibility. With the current date being January 2026, and the applicant's qualifying engagement with the University concluding in mid-2021, the window for securing a valid reference from a "Tutor" or "Lecturer" is rapidly closing. The analysis indicates that once the timeline surpasses May/August 2026, the applicant may be statutorily barred from using University of Galway staff as referees for the undergraduate qualification, effectively rendering the degree dormant for registration purposes without significant additional remediation.

1.2 Strategic Objectives of the Report

This document serves as the foundational evidentiary basis for a high-stakes communication—an ultimatum—to be delivered to Professor Hall and copied to senior University management. The objectives are fourfold:

1. **To Establish Estoppel:** To demonstrate that Professor Hall, as a member of the

Academic Council ², is estopped from privately contradicting the public certification of "fitness" inherent in the University's award of the B.Ed degree.

2. **To Define Discrimination:** To construct a legal argument that the refusal to provide a standard administrative service (the reference) constitutes indirect discrimination if it is motivated by behavioral manifestations of the applicant's documented disability (CPTSD).
3. **To Quantify Damages:** To articulate the severe economic and professional consequences of the refusal, thereby triggering the "Duty of Care" liability threshold for the University.
4. **To Compel Action:** To provide a drafted ultimatum that offers the Professor a binary choice: sign the form based on the academic record, or face a formal complaint to the Workplace Relations Commission (WRC) and the Office of the Ombudsman for administrative malpractice and discrimination.

1.3 The "Fit and Proper" Standard in Irish Law

The concept of "Fit and Proper" is a statutory standard used across various regulated professions in Ireland, including teaching, law, and financial services. It generally encompasses three pillars: competence, character, and health. In the context of the Teaching Council, the assessment is delegated. The Council does not continuously monitor every student; it relies on the "negative assurance" of trusted professionals. The form asks the signatory to certify that they "know of nothing" rendering the applicant unfit.¹ This is distinct from a "positive recommendation." It is a certification of the *absence* of disqualifying factors (e.g., criminal behavior, gross misconduct).

If a University Professor refuses to sign this negative assurance, they are implicitly making a positive assertion: that they *do* know of something rendering the applicant unfit. If such knowledge exists, it stands in direct conflict with the University's decision to graduate the student without fitness-to-practise sanctions. This contradiction is the lever upon which the ultimatum must rest.

2. The Regulatory Landscape: Teaching Council of Ireland

2.1 Statutory Basis of Registration

Teacher registration in Ireland is governed by the *Teaching Council Act 2001* (as amended). Section 31 of the Act specifies the requirements for entry to the Register of Teachers.³ It mandates that the Council must be satisfied that the applicant is a "fit and proper person." The *Teaching Council Regulations 2016* (and subsequent amendments/drafts, including the 2025 regulations³) operationalize this requirement. Regulation 10 typically lists the evidence required, which includes:

- Vetting disclosure (Garda Vetting).
- Evidence of qualification.
- **Satisfactory character reference(s) from a suitable person.**

The Council's reliance on third-party references acts as a distributed verification system. The Council itself has no direct knowledge of the applicant's conduct during their university years; it relies entirely on the declarations of the Higher Education Institution (HEI) staff. Therefore, the HEI staff member acts as a quasi-statutory gatekeeper.

2.2 The Mechanics of the Character Reference (Form D)

The specific requirements for the Character Reference Form are rigid and non-negotiable.

The guidance notes¹ stipulate the following validity criteria:

2.2.1 The "Position of Responsibility" Requirement

The signatory must be in a position of "scholastic/academic responsibility." The approved list includes:

1. **A Registered Teacher:** Must provide their Teaching Council Registration Number.
2. **Head of School Placement:** Must use the College Stamp.
3. **School Principal/Director of ETB:** Must use the School/ETB Stamp.
4. **A Tutor/Lecturer:** Of the college where the Teacher Education Programme or Primary Degree was completed.⁵

Relevance to Case: Professor Anthony Hall, as a "Personal Professor" in the School of Education⁷, qualifies under category 4 (Lecturer/Tutor). If he maintains his own Teaching Council registration (common for Education faculty), he could also sign under category 1, which avoids the need for a University stamp—a potentially smoother administrative path if he wishes to avoid institutional oversight, though the applicant's goal is institutional accountability.

2.2.2 The "One Academic Year" and "Five Years" Rule

This is the critical temporal constraint. The regulation states the referee must have:

"Known you in a professional capacity for **at least one academic year** in the **last five years**."

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Table 1: Analysis of Referee Eligibility Based on Timeframes

Degree / Qualification	Graduation Date	Relevant Academic Years	"Last Five Years" Window (Ref: Jan 2026)	Status of Referee Eligibility
BA Mathematics & Education	August 2021	2017/18, 2018/19, 2019/20, 2020/21	Jan 2021 – Jan 2026	CRITICAL / EXPIRING. The 2020/21 academic year falls partially within the window.
HDip Software Design	August 2023	2022/2023	Jan 2021 – Jan 2026	Eligible but potentially

				Invalid. Lecturers here (e.g., Dr. Barrett) taught a <i>non-teaching</i> course.
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The "Cliff Edge" Analysis:

- The applicant completed the BA in Mathematics & Education in August 2021.
- The final academic year of this degree was **September 2020 to May 2021**.
- The "last five years" is calculated backwards from the date of application to the Teaching Council. Assuming an application date of **February 2026**:
 - The 5-year window is **February 2021 to February 2026**.
- Does the applicant have a referee from the BA who knew them for "one academic year" *within* this window?
 - The period **February 2021 to May 2021** (approx. 4 months) is *part* of an academic year, but the regulation asks if they *knew* the person for an academic year *in* the last five years.
 - Strict interpretation: If the referee knew the applicant for the *entire* 2020/21 academic year, and *part* of that year falls within the 5-year window, it is usually accepted.
 - **HOWEVER:** As we move deeper into 2026, the overlap with the 2020/21 academic year vanishes. By **June 2026**, the 5-year window starts in June 2021. The applicant had likely finished lectures by May 2021. Therefore, by summer 2026, **no lecturer from the BA programme will be eligible to sign**.

Strategic Conclusion: The applicant is in a "zone of expiry." The refusal by Professor Hall is effectively running down the clock. If this drags on past mid-2026, the applicant may lose the ability to register based on the BA degree entirely, forcing them to rely on the HDip (which may not be recognized as a teaching qualification reference) or undertake new education. This constitutes **temporal prejudice**.

2.3 The "Fit and Proper" Guidelines

The Teaching Council's guidelines⁹ indicate that the assessment is holistic. While criminal convictions are the primary focus of vetting, the "Character Reference" is a catch-all for professional suitability.

- **Code of Professional Conduct:** Teachers are expected to demonstrate respect, care, trust, and integrity.
- **The Conflict:** If Professor Hall believes the applicant lacks these traits, he must have evidence. The applicant's CV¹ shows high academic achievement (1st Class Honours) and positive feedback ("Brilliant class," "Standing ovation"). This objective evidence contradicts any subjective negative assessment Hall might harbor.

3. Governance & Institutional Liability: University of Galway

3.1 The University as a Service Provider

The University of Galway is not merely an employer of academics; it is a public body and a service provider subject to the *Universities Act 1997*.

- **Student Charter:** The University's Student Charter¹⁰ outlines the partnership between students and the institution. Implicit in this charter is the University's obligation to support the career progression of its graduates.
- **Service Definition:** Under the *Equal Status Act 2000*, a "service" includes "a facility for... education, instruction or training".¹¹ The provision of a reference to validly use that education for professional registration is an *ancillary service*. Refusing this service falls within the remit of the WRC.

3.2 The Role of the Academic Council

Professor Hall is a member of the **Academic Council**.² This is the supreme academic authority responsible for:

- Designing and monitoring programmes.
- Making recommendations on the conferring of degrees.
- Overseeing student discipline.

The "Estoppel" Argument:

Estoppel is a legal principle that prevents a person from arguing something contrary to a claim they previously made.

1. The Academic Council (of which Hall is a representative) conferred the B.Ed degree on Cian Lyons in 2021.
2. The conferral of a professional teaching degree is a public statement by the University that the graduate has met *all* standards, including professional conduct standards.
3. If the University believed the applicant was "unfit," it had a duty *not* to award the degree or to instigate Fitness to Practise proceedings during the course.
4. Since the degree was awarded, the University has legally certified the applicant as fit.
5. Therefore, Professor Hall, as an agent of the University and member of the Council, is **estopped** from refusing a reference on the grounds of "unfitness," unless he relies on new evidence arising *after* graduation (e.g., a post-2021 criminal conviction).

3.3 Conflict of Interest and Bias

The query suggests a conflict of interest. In administrative law, bias (or the perception thereof) vitiates a decision.

- **Nemo iudex in causa sua:** No one should be a judge in their own cause.
- If Professor Hall has a personal grievance with the applicant (e.g., due to past advocacy regarding disability accommodations), he cannot objectively assess "character."

- **Proper Procedure:** If conflicted, Hall should not simply *refuse*; he should *recuse* himself and refer the matter to the Head of School (Prof. Michal Molcho or Gerry Mac Ruairc) for an objective reference based on the student's file. Failing to offer this referral is a failure of fair procedures.

3.4 Duty of Care to Alumni

In *Spring v Guardian Assurance plc*, the House of Lords established that a referee owes a duty of care to the subject of the reference.

- **Negligence:** If a referee negligently refuses a reference or provides an inaccurate one, causing economic loss (inability to gain employment/registration), they are liable for damages.
- **Application:** In Ireland, this principle informs the duty of care universities owe to students. By refusing to sign the Teaching Council form—a standard administrative requirement for all B.Ed graduates—without "good cause," Professor Hall is potentially liable for the applicant's loss of earnings as a teacher.

4. The Rights Framework: Disability & Equality Law

4.1 Medical Analysis of the Applicant's Status

The medical report from Dr. James McLoughlin¹ is a critical piece of evidence.

- **Condition:** Anxiety Disorder and Post-Traumatic Stress Disorder (ICD-10 F43.12).
- **Onset:** 2015.
- **Symptoms:** "Impaired energy levels," "difficulty with concentration," "anxious trait" affecting assignment submission.
- **Context:** "Significant distress due to home abuse issues."

This establishes the applicant as a "vulnerable adult" in the context of higher education support and confirms his status as a person with a disability under Irish law.

4.2 The Equal Status Acts 2000–2018

This legislation is the primary vehicle for challenging the refusal.

- **Section 3(2)(g):** Prohibits discrimination on the "disability ground."
- **Section 4 - Reasonable Accommodation:** A service provider must do all that is reasonable to accommodate the needs of a person with a disability.
 - *The "Nominal Cost" Test:* Section 4(2) states a refusal is not reasonable unless providing the accommodation gives rise to a cost other than a nominal cost.¹²
 - *Application:* Signing a form costs the University nothing (zero monetary cost). Therefore, refusing to sign cannot be justified by "cost." It must be justified by "impossibility" or "undue difficulty."

The "Behavioral" Trap:

Individuals with CPTSD/Anxiety may exhibit behaviors under stress (avoidance, terse

communication, hyper-vigilance) that can be misinterpreted as "bad character" or "rudeness."

- If Professor Hall's refusal is based on such interactions, he is penalizing the applicant for the *symptoms* of their disability.
- **Legal Precedent:** In *A Mother and Son v A Secondary School*, the Equality Officer ruled that educational institutions must distinguish between misconduct and disability-related behavior.¹³ Punishing the latter without accommodation is discrimination.
- **The Required Accommodation:** The accommodation required here is for the Professor to set aside personal irritation regarding the applicant's communication style (likely anxiety-driven) and provide the reference based on the *objective* academic record.

4.3 The Disability Act 2005: Public Sector Duty

The University of Galway is a public body defined under the *Disability Act 2005*.

- **Section 26:** Requires public bodies to ensure their services are accessible.¹⁴
- **Access Officers:** The University must have an "Access Officer" responsible for providing assistance.
- **Inquiry Officers:** Under Section 38, the applicant can complain to an Inquiry Officer if the University fails to comply with Section 26.
- **Strategic Use:** The ultimatum should copy the University's Access Officer/Disability Support Service, framing the refusal as a failure of accessibility. The "standard procedure" (emailing a lecturer) has failed; the University must now provide an alternative route (e.g., Head of School signature) to comply with the Act.

5. Forensic Case File Analysis

5.1 The Applicant's Profile

- **Academic:** 1st Class Honours (78% in BA, 71% in HDip).¹
- **Professional:** "Apple Customer Satisfaction Elite Award" ¹ – proves high competence in interpersonal professional settings.
- **Teaching Performance:** Email from Cornelia Connolly [User Image] mentions a "Brilliant class" and notes "We are proud of you and your progression." This is contemporaneous written evidence from a senior academic *in the same School* praising the applicant's fitness.
- **Referees:** Kathy O'Sullivan provided a glowing reference in 2021.¹
 - *Anomaly:* Why is the applicant demanding a signature from Hall if O'Sullivan is available?
 - *Deduction:* O'Sullivan's reference is dated 2021. The Teaching Council form usually requires a *current* signature (dated within the last 6-12 months). The applicant needs a *fresh* signature. If O'Sullivan is unavailable or ineligible, Hall (who taught Philosophy of Education) is the remaining target.

5.2 Professor Anthony Hall's Position

- **Profile:** Personal Professor, School of Education. Interests: Educational Technology, Design-Based Research.⁷
- **Governance Role:** Academic Council member.
- **Conflict:** The user query mentions Hall "refused to reply" and later "refused to provide." The user suspects prejudice.
- **Vulnerability:** As a senior figure, Hall represents the institution. His silence/refusal is an administrative action. If he has no objective grounds (e.g., documented disciplinary hearing), his refusal is arbitrary.

5.3 Comparison with Other Potential Referees

The Teaching Council allows the "Head of School Placement" to sign.

- **Current Head of School Placement:** Likely Dr. Manuela Heinz (referenced in snippets as Director of Teaching Practice previously ¹⁵).
- **Strategy:** If Hall refuses, the ultimatum should demand that the Head of School (Prof. Molcho/Prof. Mac Ruairc) or the Head of School Placement (Dr. Heinz) signs the form, utilizing the "College Stamp" provision. This bypasses Hall while fulfilling the requirement.

6. Strategic Synthesis: Drafting the Ultimatum

The communication must be structured not as a student asking a favor, but as a graduate asserting a legal right. It represents the "Pre-Action" phase of litigation.

6.1 Principles of the Ultimatum

1. **Shift the Burden:** Force Hall to justify the refusal rather than just ignoring the request.
2. **Highlight the Clock:** Emphasize the expiry of the 5-year eligibility window (May 2026).
3. **Invoke the Hierarchy:** Copying the Head of School and Dean of Students makes Hall's personal refusal an institutional liability.
4. **Cite the Legislation:** Explicitly mentioning the Equal Status Act and Disability Act signals that the applicant has legal counsel or deep knowledge.

6.2 The Draft Communication

To: Professor Anthony Hall (tony.hall@universityofgalway.ie)

Cc:

- Professor Michal Molcho, Head of School of Education (michal.molcho@universityofgalway.ie)
- Professor Gerry Mac Ruairc (gerry.macruairc@universityofgalway.ie)
- Dr. Ciara Meehan, Dean of Students (deanofstudents@universityofgalway.ie)
- Disability Support Service (disabilityservice@universityofgalway.ie)

Subject: URGENT: Pre-Action Notice regarding Refusal of 'Fit & Proper Person' Reference – Cian Lyons (Student ID: 11476078)

Dear Professor Hall,

I am writing to you formally regarding your refusal to provide the "Fit and Proper Person" character reference required for my registration with the Teaching Council of Ireland. As you are aware, I graduated from the University of Galway with a **First Class Honours BA in Mathematics and Education in 2021**, a qualification for which you served as a lecturer (History and Philosophy of Education).

I am compelled to issue this correspondence due to the critical time sensitivity of my application. Under the Teaching Council's registration regulations, a referee must have known the applicant for "at least one academic year in the last five years." As my final academic year with you concluded in May 2021, my eligibility to use your reference will statutorily expire in **May 2026**. Your continued refusal/delay is actively running down this clock, threatening to render my primary degree obsolete for registration purposes and causing me significant economic loss.

1. The Principle of Estoppel and Institutional Consistency

The University of Galway, via the Academic Council of which you are a member, formally conferred my degree in 2021. By doing so, the University certified that I had met all learning outcomes, including the professional conduct standards inherent in an Initial Teacher Education (ITE) programme.

It is legally inconsistent for the University to award a degree certifying fitness to teach, and for a Professor of that same University to subsequently refuse to sign a form confirming that same fitness. Unless you are in possession of evidence of criminal conduct or gross misconduct occurring *after* my graduation—of which there is none—you are estopped from contradicting the University's own certification.

2. Legal Obligations: Equal Status Act 2000 & Disability Act 2005

I remind you that I am a person with a documented disability (Post-Traumatic Stress Disorder and Anxiety), details of which are held by the University's Disability Support Service.

- **Refusal of Service:** The provision of a reference to facilitate professional registration is an ancillary service of the University. Under the *Equal Status Acts 2000–2018*, discrimination in the provision of services on the disability ground is unlawful.
- **Indirect Discrimination:** If your reluctance to sign is based on any subjective assessment of my "character" or communication style that stems from my documented disability (e.g., anxiety, distress), this constitutes discriminatory treatment.
- **Reasonable Accommodation:** Under Section 4 of the Act, the University is obliged to provide reasonable accommodation. In this context, this means facilitating the administrative requirements of my registration without penalizing me for the manifestations of my disability.

3. The Ultimatum and Required Action

Given the imminent expiry of the 5-year eligibility window, I require a resolution within **5 working days** (by). Please provide one of the following:

- **Option A:** The signed 'Fit & Proper Person' form. (Attached).
- **Option B:** A formal written statement detailing the specific objective reasons why you

believe I am **not** a fit and proper person, despite my First Class Honours degree and successful School Placement (graded 70%).

Failure to Respond:

If I do not receive a response, I will be forced to escalate this matter immediately to the **Workplace Relations Commission (WRC)** under the *Equal Status Act 2000* (discrimination in provision of services) and to the **Office of the Ombudsman** for administrative maladministration. I will also submit a **Data Subject Access Request (DSAR)** to the University to obtain all internal communications regarding my file to establish the basis of this refusal.

I trust this escalation will not be necessary and that you will fulfill the administrative duty owed to a First Class Honours graduate of your School.

Yours sincerely,

Cian Lyons

[Phone Number]

7. Next Steps and Mitigation Strategies

7.1 If Hall Signs

Review the form immediately. Ensure the date is current. Submit to the Teaching Council immediately via the "My Registration" portal.

7.2 If Hall Refuses or Ignores

1. **Immediate Escalation to Head of School:** Use the silence/refusal to appeal directly to **Prof. Michal Molcho** or **Dr. Manuela Heinz**.
 - o *Argument:* "Professor Hall has abdicated his duty. As Head of School / Head of Placement, you have access to my academic transcript and placement reports (which are excellent). I request you sign the form in his stead, stamping it with the University stamp as permitted under the regulations."
2. **WRC Complaint:** File the notification of intent to seek redress under the Equal Status Act. This must be done within **2 months** of the incident (the refusal).
3. **Ombudsman:** File a complaint regarding "Unfair treatment" and "Failure to provide a service" against the University.
4. **Teaching Council Exception:** Contact the Teaching Council, providing the evidence of the University's refusal (the emails). Request an exception to the "one academic year" rule to allow a referee from the 2023 HDip or your employer (Tech Steps) to sign, citing "force majeure" due to the University's failure.

8. Conclusion

The refusal of a character reference for a qualified teacher, particularly one with a First Class Honours degree, is an anomaly that suggests either personal bias or a breakdown in

administrative process. When the applicant has a protected status (Disability/PTSD), this anomaly becomes a legal liability for the University. The "last five years" rule creates a hard deadline that transforms this administrative delay into a career-ending threat. The ultimatum drafted above is designed to make the cost of *refusing* (legal exposure, WRC investigation, DSAR) significantly higher for Professor Hall than the cost of *signing* (a nominal administrative act).

Table 2: Key Governance & Legal Levers

Lever	Source	Application to Case
Estoppel	Common Law / Academic Council	University awarded the degree; cannot now claim student is "unfit."
Discrimination	<i>Equal Status Act 2000</i> , s.3-5	Refusal based on disability traits (anxiety/communication) is unlawful.
Reasonable Accommodation	<i>Equal Status Act 2000</i> , s.4	University must facilitate the reference as it costs nothing ("nominal cost").
Duty of Care	<i>Spring v Guardian Assurance</i>	University liable for economic loss caused by negligent refusal of reference.
Public Duty	<i>Disability Act 2005</i> , s.26	Public bodies must ensure services are accessible to persons with disabilities.

This report confirms that the applicant has a robust case to demand the reference, provided the "five-year" window has not yet fully closed. Immediate action is required.

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